

Jatin Kumar Modanwal v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 25 February 2026 · Writ-C No. 7642 of 2026 · **Writ disposed; objections to be heard before final assessment under the Code.**

HEADNOTE

A writ challenging an inspection report and a still-pending provisional assessment is disposed by directing the consumer to file objections; the assessing authority must hear him and only then take a final decision under the U.P. Electricity Supply Code, 2005. Coercive action is stayed for three months or until that decision, whichever is earlier; current bills remain payable.

FACTUAL SUMMARY

The petitioner challenged an inspection report dated 15 July 2024 and a consequential provisional assessment notice for Rs. 6,12,884/-. He alleged that the inspection was ex-parte, that his representation had not been properly entertained, and that the U.P. Electricity Supply Code, 2005 entitled him to a hearing on the provisional assessment. Counsel for the distribution licensee stated that an opportunity to appear had been given, that the petitioner had failed to appear, and that no recovery had yet been issued because the notice remained to be considered for final assessment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::assessment

hearing before final assessment on a provisional notice

HOLDING

Where a consumer challenges an inspection report and a provisional assessment notice under Article 226, and final assessment has not yet been made, the Court will not decide the merits. The consumer is directed to file objections to the report and the notice; the assessing authority must consider those objections, grant a hearing, and only thereafter take a final decision on assessment under the U.P. Electricity Supply Code, 2005. Coercive action is stayed for a limited period; current electricity bills remain payable. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE INSPECTION DATED 15.07.2024 WAS EX-PARTE

¶ 3

NOT DECIDED — WHETHER THE PETITIONER'S REPRESENTATION WAS PROPERLY ENTERTAINED

¶ 3

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT OF RS. 6,12,884/-

¶ 2-5

NOT DECIDED — WHETHER AN OPPORTUNITY OF HEARING HAD IN FACT BEEN AFFORDED BEFORE THE WRIT

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